



**Before the
CONSUMER FINANCIAL PROTECTION BUREAU
Washington, D.C. 20552**

COMMENTS

of the

ANA – ASSOCIATION OF NATIONAL ADVERTISERS

on the

**Advanced Notice of Proposed Rulemaking – Personal Financial Data Rights
Reconsideration
Docket No. CFPB-2025-0037**

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On behalf of the Association of National Advertisers (“ANA”), we provide the following comments in response to the Consumer Financial Protection Bureau’s (“CFPB” or “Bureau”) Advanced Notice of Proposed Rulemaking (“ANPRM”) on Personal Financial Data Rights Reconsideration.¹ The ANPRM states that the Bureau seeks to “comprehensively reexamine [the Personal Financial Data Rights final rule (“PFDR Rule”)] alongside stakeholders and the broader public to come up with a well-reasoned approach.”² As the existing PFDR Rule includes expansive use restrictions that would undermine numerous consumer benefits advanced by routine and responsible data use, we appreciate the Bureau’s efforts to reconsider and align the PFDR Rule with the statutory framework established by section 1033 of the Dodd-Frank Wall Street Reform and Consumer Protection Act (“Dodd-Frank Act”).

As America’s oldest and largest advertising trade association, the ANA has long supported the efforts of brands, advertisers, marketing service providers, and countless other entities to provide consumers with access to goods, services, and accurate information they depend on and desire. With a mission to shape the future of marketing, the ANA sets the agenda for the industry, connecting its members, including over 120 in the financial services and banking industries, to unparalleled expertise, industry-leading resources, and an influential global network. Representing over 1,600 companies – including over 1,000 client-side marketers, 600 marketing solutions providers, and 20,000 brands – ANA members collectively influence \$400 billion in annual marketing spending. By championing the 12-point ANA Growth Agenda and the CMO Growth Council, the ANA drives actionable change, empowers marketers, shapes the marketing ecosystem, and delivers exceptional experiences at every touchpoint. Since 1910, the ANA has been setting the agenda for industry transformation. It enables marketers to advance their ambitions, make better decisions, and create lasting impact for their organizations and the industry.

As the Bureau reconsiders the PFDR Rule, we encourage the Bureau to prioritize safeguarding reasonable data uses that benefit consumers and contribute to a thriving economy. Our comments describe how routine and responsible data-driven advertising provides immense benefits to consumers, businesses, and the U.S. economy. We then identify provisions in the existing PFDR Rule that impose overly restrictive limitations on secondary data uses that could inhibit such benefits across the financial sector. Finally, we urge the Bureau to look to approaches that already contain robust consumer privacy protections for financial data while preserving crucial beneficial data uses.

I. Data-driven advertising directly benefits consumers and spurs innovation and competition that fuel the modern U.S. economy.

Previous commentary about the PFDR Rule underestimated the significant benefits that responsible advertising provides to consumers. In the 2023 NPRM, the Bureau stated that data-driven advertising and cross-selling do not primarily benefit consumers.³ However, this position

¹ CFPB, *Advanced Notice of Proposed Rulemaking on Personal Financial Data Rights Reconsideration*, 90 Fed. Reg. 40986 (Aug. 22, 2025) (*hereinafter*, CFPB ANPRM), located [here](#) [*hereinafter*, CFPB ANPRM].

² *Id.* at 40987.

³ CFPB, *Notice of Proposed Rulemaking on Personal Financial Data Rights*, 88 Fed. Reg. 74796, 74833 (Oct. 31, 2023) (*hereinafter*, CFPB NPRM), located [here](#) (“The CFPB has preliminarily determined that when the consumer

fails to account for the myriad benefits advertising brings to consumers and could have a chilling effect on companies' ability to provide innovative financial products and services that consumers desire.

Consumers directly benefit from the vast array of resources, information, and services available to them at little to no cost in today's digital environment. Many consumers have grown to rely upon free and lower cost services that are enabled through responsible data-driven advertising. For instance, one study demonstrates that each consumer derives more than \$30,000 in annual value through the free or low-cost services subsidized by the ad-supported online ecosystem.⁴ Overly restrictive limits on routine data uses like those in the current PFDR Rule would inhibit consumer access to free and low-cost resources and lead to a rise in subscription-based pricing. Reduced access to such information threatens the egalitarian nature of today's open Internet and disproportionately harms consumers with less disposable income by creating significant barriers to access crucial information previously accessible for free or at a low cost.

Businesses similarly rely on data-driven advertising to effectively compete and deliver a wide range of financial products and services at lower costs to consumers. Responsible advertising propels competition by reducing barriers to entry, especially for small and start-up companies trying to expand into the financial sector. Data-driven advertising provides these businesses with a cost-effective means to identify audiences interested in their innovative and niche product offerings.⁵ By helping connect new and small businesses with consumers who desire their products, advertising allows these businesses to compete more effectively with larger, more established counterparts that have built-in customer bases within the financial services industry. Rigorous competition across businesses of all sizes within the financial sector helps to promote innovation, increase consumer choice in the market, and ultimately drive down fees for financial products and services available to consumers. Ultimately, consumers benefit from this competition with lower prices and access to a variety of products and services they can learn about through advertising.

A thriving digital marketplace serves as the cornerstone of the modern U.S. economy and delivers immense benefits to both businesses and consumers through extensive economic and employment opportunities. One study estimates that, in 2024 alone, advertising impacted more than 20 percent of the U.S. Gross Domestic Product ("GDP") by supporting more than \$10.4 trillion in annual sales and 29 million U.S. jobs.⁶ As the Bureau considers updates to the PFDR Rule, we urge the Bureau to recognize the tremendous benefits unlocked by responsible advertising and to preserve the reasonable data uses that facilitate innovation, consumer choice, and robust competition within the financial services sector.

goes into the market seeking such other products or services—such as a loan, a checking account, or a personal financial management tool—the use of data for [targeted advertising, cross-selling, and data sales] is, as a general matter, not for the primary benefit of the consumer.”).

⁴ See J. Howard Beales & Andrew Stivers, *An Information Economy Without Data*, 2 (2022), located [here](#).

⁵ *Id.* at 8-9.

⁶ See S&P GLOBAL, *THE ECONOMIC IMPACT OF ADVERTISING ON THE US ECONOMY 2024-2029* at 4 (Aug. 2025), located [here](#).

II. Overly restrictive limits on third parties' ability to conduct targeted advertising and cross-selling under the PFDR Rule would impede significant consumer benefits.

The ANPRM asks whether the PFDR Rule provides an “adequate level of consumer privacy” and seeks comment “on any modifications to the PFDR Rule’s provisions.”⁷ The PFDR Rule’s prohibitions on third parties’ use of covered data for targeted advertising or cross-selling unnecessarily inhibit routine data uses that benefit consumers without providing intended privacy protections. Under the PFDR Rule, a consumer must authorize a third party to access covered data on the consumer’s behalf. The PFDR Rule then, however, imposes additional restrictions on the use of that authorized data that does not further privacy protections for consumers, and in fact limit a consumer’s ability to receive the full benefits of the data sharing authorized by the PFDR Rule. Specifically, the PFDR Rule prohibits third parties from engaging in responsible advertising using information that was collected at the request of the consumer by explicitly excluding targeted advertising and cross-selling as “reasonably necessary” to provide products and services. This exclusion prevents third parties from using covered data for routine advertising uses, even though a consumer has already affirmatively consented to the third party accessing the data on the consumer’s behalf. The CFPB previously supported such prohibitions by stating that targeted advertising and cross-selling “do not primarily benefit consumers in most cases....”⁸

To the contrary, these restrictions would severely interfere with third parties’ ability to use data a consumer authorized them to collect to engage in responsible data practices that directly benefit consumers. Companies rely on targeted advertising to leverage data to connect with new and existing customers regarding financial products and services that may interest them. Moreover, cross-selling allows businesses to identify consumers that may be interested in other products they could make available to their already existing customers. It is reasonable for participants in the financial services industry to use data that a consumer has provided to them to connect with customers who may be interested in a company’s products or services, particularly when consumers have already exercised choice by authorizing third-party access to the data. However, the PFDR Rule’s targeted advertising and cross-selling restrictions stymie businesses’ ability to reach new audiences about lower fees and innovative offerings, making it more difficult for those companies to effectively compete in the marketplace. Thriving competition within the financial services industry is necessary to support expanded service offerings and reduced fees for crucial products and services. As the Bureau reconsiders the PFDR Rule, it should ensure that the rule does not unnecessarily hinder increased consumer choice and product innovation that flow from robust online markets supported by responsible advertising.

III. The CFPB should look to privacy models that provide consumer safeguards while maintaining critical beneficial data uses.

The ANA understands the importance of safeguarding financial information about American consumers. As a founding member of Privacy for America, the ANA has long championed preemptive federal privacy legislation that would both provide important consumer

⁷ CFPB ANPRM at 40989.

⁸ CFPB NPRM at 74834.

privacy protections and retain reasonable data uses that fuel competition. Privacy for America's *Principles for Privacy Legislation* ("*Principles*") would establish meaningful protections for consumers, including consent for the collection, use, maintenance, and transfer of "sensitive" data. The *Principles* would extend these sensitive data protections to the processing of certain types of financial data not covered by the Gramm-Leach Bliley Act ("GLBA"). Under this approach, a business would be permitted to use data subject to consent requirements for any non-prohibited purpose disclosed to a consumer, including cross-selling and targeted advertising. Such an approach advances consumer choice and transparency by allowing consumers to decide whether they consent to certain sensitive data processing for the disclosed purposes. At the same time, this approach does not unduly restrict reasonable and responsible data use, as it permits businesses to engage in a range of data uses once a consumer has consented to the processing, so long as the use was disclosed to the consumer.

The GLBA similarly already provides reasonable controls relevant to the use of financial data for advertising purposes.⁹ The GLBA requires financial institutions to inform consumers about their data practices, including statements about the use and disclosure of financial data to third parties for marketing purposes.¹⁰ For decades, the GLBA has provided effective safeguards for financial data through an opt-out system. An opt-out approach allows consumers who care most about data privacy to exercise control over financial data without inhibiting companies' ability to engage in routine, disclosed processing activities for non-opted out data. As the Bureau considers changes to the PFDR Rule, we encourage the Bureau to look to existing models like the GLBA and the *Principles*, which both advance consumer choice related to marketing while preserving the numerous benefits that flow from responsible, data-driven advertising.

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Thank you for the opportunity to submit comments on these important topics. Please do not hesitate to contact us with any questions regarding this submission.

⁹ 15 U.S.C. § 6801 *et seq.*

¹⁰ *Id.* § 6802(b).